

peal), and shall be enforced in like manner as if made by the Court; and the original Order or any duplicate thereof (which the Master is to grant on the application of any party) shall be a sufficient warrant to every officer of the Court to do the act therein mentioned, or to permit the same to be done, and each party shall be at liberty to inspect the entry of all such Orders in the said Entering-book without fee.

Defendant within one month may answer and demur, but must not demur alone.

The answer must, as we have seen, come in within one month after appearance, unless further time is given; but the answer filed needs not be to the whole bill. So that there is some answer, the defendant may couple that answer with a demurrer to the Bill, provided he does not demur to the whole Bill, but answers as to some part. The demurrer, thus coupled with the answer, may then be set down by either party, and, if it is overruled, the defendant must answer over, and counsel should at once ask the Court for time to answer, or the Plaintiff may proceed by traversing note, under the 32nd New Order.

Must clearly distinguish part answered from part demurred to.

If the demurrer is allowed, the Plaintiff's case fails as to so much of the Bill as has been demurred to, and he can only rely on the remaining part at the hearing. The answer and demurrer must clearly state and distinguish the respective parts of the Bill to which the answer and the demurrer relate.

The practice may be considered somewhat relaxed in that respect by the following Orders, but still there should be clearness and particularity observed in stating what parts of the Bill the demurrer is meant to govern. Otherwise, were the demurrer allowed, it might be difficult to say how much of the Bill should be struck out by amendment.

It had been held when the defendant answered and demurred, that a demurrer was bad if it had extended to any part of the Bill which the answer also covered. This is altered by the following Order:

1842.
113.
Demurrer not bad because answer extends to part.

That no demurrer *or plea* shall be held bad and overruled upon argument only, because the answers of the defendant may extend to some part of the same matter as may be covered by such demurrer or plea.

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